

****December 19, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in November 2024, an investigation into the operator Pansiprod Distribuție SRL and found a violation of the provisions of Article 15 paragraphs (3) and (4) and Article 58 paragraph (2) letter c) of Regulation (EU) 2016/679, as it did not fully comply with the corrective measure from the minutes of finding/sanction issued by our institution (on February 19, 2024). As such, the operator was sanctioned with a fine of 4,976.4 lei (equivalent to the amount of 1,000 EURO).

In this context, we mention that, initially, on February 19, 2024, the National Authority for Supervision completed an investigation following a complaint submitted by a data subject who reported that the operator did not respond to their request regarding the right of access to personal data.

During this investigation, it was found that the operator Pansiprod Distribuție SRL did not provide evidence of communication within the legal term of an appropriate response to the applicant's request, thus violating the provisions of Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679, in relation to Article 15 of the same regulation.

As such, the operator was sanctioned with a warning through the minutes of finding/sanction dated February 19, 2024, and two corrective measures were ordered:

1. To communicate a written response to the applicant's request, in accordance with the provisions of Article 15 of Regulation (EU) 2016/679, based on the provisions of Article 58 paragraph (2) letter c) of Regulation (EU) 2016/679;
2. To ensure compliance with Regulation (EU) 2016/679 of the personal data processing operations by implementing appropriate technical and organizational measures, including regarding the training of persons processing data under the authority of the operator, concerning the procedure for deactivating/archiving/storing/deleting the content related to a professional email account that may contain personal data, including that of the holder of this account, based on the provisions of Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679.

Subsequently, the applicant submitted a new complaint alleging the operator regarding the manner in which it responded to their access request, and during a new investigation at Pansiprod Distribuție SRL, it was found that the operator did not fully comply with the corrective measure from the minutes dated February 19, 2024, ordered under Article 58 paragraph (2) letter c) of Regulation (EU) 2016/679. Thus, through the response sent, the operator did not communicate to the applicant within the established term and appropriately the copy of their personal data from the history of their email account. This situation represents a violation of the provisions of Article 15 paragraphs (3) and (4) of Regulation (EU) 2016/679.

As such, the fine of 4,976.4 lei (equivalent to the amount of 1,000 EURO) was applied. Additionally, under Article 58 paragraph (2) letter c) of Regulation (EU) 2016/679, the corrective measure was ordered for the operator to send a complete response to the request of the data subject by communicating the copy of their personal data from the archive of their email account, in relation to Article 15 paragraphs (3) and (4) of Regulation (EU) 2016/679.

****Legal and Communication Directorate****

****N.A.S.P.D.C.P.****